

ORIGINAL

(S E R V E D)
(OCTOBER 5, 1994)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

October 5, 1994

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

UNOPPOSED MOTION OF RESPONDENTS FOR AN
EXTENSION OF THE BRIEFING SCHEDULE GRANTED

Respondents American President Lines, Ltd. and Sea-Land Service, Inc. move for a four-week extension of the dates for briefing of this case established in the Administrative

Law Judge's June 17, 1994, Briefing Schedule ("Briefing Schedule").¹ Respondents state that counsel for complainants has authorized them to state that complainants will not oppose the requested extension, and will not file a reply to the motion. Respondents confirm in the motion the representations they made to complainants' counsel that, with this extension requested, respondents consider the time established for filing of the Proposed Findings and Opening Brief sufficient, no further extension of that date will be requested by respondents, and it is their current belief that the balance of the schedule as proposed in footnote 1 will be sufficient to complete the briefing of this case.

In Respondents' Proposed Post Hearing Briefing Schedule, respondents state that they established the enormity of the task required to responsibly brief the case, due both to the massiveness and complexity of the record and the diversity of the issues. While not adopting the schedule proposed by respondents, the Administrative Law Judge nevertheless acknowledged the daunting nature of this task in his Briefing Schedule. Respondents state that although they have diligently attempted to meet the date set for opening submissions by the June 17, 1994, Briefing Schedule, it has become clear to them that the time so allotted will not be sufficient if their filings are to provide the full and adequate summary

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The dates set forth in the Briefing Schedule, and the revised dates requested in the motion, are as follows:

	<u>Briefing Schedule</u>	<u>Requested</u>
Proposed Findings and Opening Brief	November 7, 1994	December 5, 1994
Reply Briefs	January 9, 1995	February 6, 1995
Surreplies	January 24, 1995	February 21, 1995

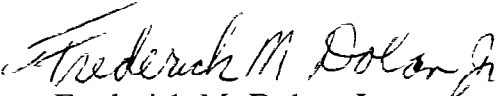
of the record and analysis of the legal issues that this proceeding requires. Respondents state that this reflects the enormity of the task and the fact that respondents' counsel have been and will continue to be required to devote material attention to other significant intervening professional responsibilities that were not anticipated earlier. Respondents state that, for example, in the period between issuance of the Briefing Schedule on June 17, 1994, and the date currently set for Opening Briefs on November 7, 1994, counsel for APL have the responsibility for substantive submissions (most of which are recently scheduled) in seven docketed agency and federal court proceedings, exclusive of Docket No. 89-26.

Under the circumstances, respondents state that the request is both necessary and reasonable and should be granted. I agree and the motion will be granted.

IT IS ORDERED:

Respondents' unopposed motion for an extension of time is granted. The Briefing Schedule of June 17, 1994, is modified as follows:

- (1) Simultaneous Proposed Findings and Opening Briefs shall be due on or before December 5, 1994;
- (2) Simultaneous Reply Briefs shall be due on or before February 6, 1995;
and
- (3) Simultaneous Surreplies shall be due on or before February 21, 1995.


Frederick M. Dolan, Jr.
Administrative Law Judge